IN THE
SUPREME COURT OF VIRGINIA

RECORD NO. 230172

ANTOINE ANDERSON,
Petitioner-Appellant.

v.

HAROLD CLARKE and KEMSY BOWLES,
Respondents-Appellees.

BRIEF OF APPELLEES

JASON S. MIYARES, Attorney General
LAURA H. CAHILL (#86328), Assistant Attorney General
ANDREW N. FERGUSON (#86583), Solicitor General
ERIKA L. MALEY (#97533), Principal Deputy Solicitor General
GRAHAM K. BRYANT (#90592), Deputy Solicitor General
RICK W. EBERSTADT (#92212), Assistant Solicitor General
Office of the Attorney General
202 North Ninth Street
Richmond, Virginia 23219
(804) 786-7704 – Telephone
(804) 371-0200 – Facsimile
SolicitorGeneral@oag.state.va.us

TABLE OF CONTENTS

INTRODUCTION 1

STATEMENT OF THE CASE 2

ASSIGNMENTS OF ERROR 3

STATEMENT OF FACTS 4

A. Anderson receives a thirteen-year sentence for abducting and assaulting correctional officers in an escape attempt 4

B. The General Assembly modifies the earned sentence credit program over several legislative sessions 7

C. The circuit court denies Anderson's habeas petition 10

STANDARD OF REVIEW 13

SUMMARY OF ARGUMENT 13

ARGUMENT 15

I. Item 404(R)(2) does not implicate the presumption against retroactivity, and in any event would overcome the presumption 15

A. The presumption against retroactivity does not apply because Item 404(R)(2) altered only H.B. 5148, which was not effective law ... 15

B. Even if the presumption against retroactivity applied, Item 404(R)(2) plainly bars mixed sentences from eligibility for enhanced sentence credits 21

II. Anderson's constitutional claims fail 28

A. Anderson's Ex Post Facto Clause claim fails because his earned sentence credits were never revoked, and Item 404(R)(2) does not increase his punishment 29

B. Anderson's due process claim fails because he has no substantive right or protected liberty interest in a provision that never became effective 36

CONCLUSION 43

TABLE OF AUTHORITIES

CASES

Anderson v. Commonwealth, Record No. 1596-05-2, 2006 WL 3589058 (Va. Ct. App. Dec. 12, 2006) 2, 5, 6

Baugh v. Commonwealth, 68 Va. App. 437 (2018) 29

Blake v. Commonwealth, 288 Va. 375 (2014) 22

Board of Sup'rs of James City Cnty. v. Windmill Meadows, LLC, 287 Va. 170 (2014) 21

Boynton v. Kilgore, 271 Va. 220 (2006) 27

Buenson Div., Aeronca, Inc. v. McCauley, 221 Va. 430 (1980) 21

Bull v. Read, 54 Va. (13 Gratt.) 78 (1855) 19

Calder v. Bull, 3 U.S. 386 (1798) 33

Carpenter v. Commonwealth, 51 Va. App. 84 (2007) 37

Carter v. Gordon, 28 Va. App. 133 (1998) 40

Castillo v. State, 954 P.2d 145 (Okla. Crim. App. 1998) 32

Cisneros v. Alpine Ridge Grp., 508 U.S. 10 (1993) 16

City of Charlottesville v. Regulus Books, LLC, 301 Va. 170 (2022) 13

Collins v. Youngblood, 497 U.S. 37 (1990) 29

Commonwealth v. Muwahhid, __ Va. App. __, 2023 WL 3956774 (June 13, 2023) 25, 28

Connecticut Dep't of Pub. Safety v. Doe, 538 U.S. 1 (2003) 42

County Sch. Bd. of Fairfax Cnty. v. Town of Herndon, 194 Va. 810 (1953) 18

Evans v. Commonwealth, 228 Va. 468 (1984) 29, 33

Ewell v. Murray, 11 F.3d 482 (4th Cir. 1993) 41, 42

Ferguson v. Ferguson, 169 Va. 77 (1937) 20

Fernandez-Vargas v. Gonzalez, 548 U.S. 30 (2006) 21, 28

Friedman v. Peoples Serv. Drug Stores, Inc., 208 Va. 700 (1968) 19

Froman v. Peterson, 74 Fed. Appx. 484 (6th Cir. 2003) 33

Gloucester Realty Corp. v. Guthrie, 182 Va. 869 (1944) 20

Hawkins v. Freeman, 195 F.3d 732 (4th Cir. 1999) 40, 41

Holmes v. Christie, 14 F.4th 250 (3d Cir. 2021) 36

In re Pillow, 8 B.R. 404 (Bankr. D. Utah 1981) 21
J.W. Woolard Mech. & Plumbing, Inc. v. Jones Dev. Corp., 235 Va. 333 (1988) 19
Johnson v. United States, 529 U.S. 694 (2000) 33
Klimko v. Virginia Emp. Comm'n, 216 Va. 750 (1976) 41
Landgraf v. USI Film Products, 511 U.S. 244 (1994) 13, 17, 20
Lynce v. Mathis, 519 U.S. 433 (1997) 33, 34, 35
Martin v. Commonwealth, 64 Va. App. 666 (2015) 29
McClain v. Commonwealth, 189 Va. 847 (1949) 29
Nichols v. Helgemoe, 369 A.2d 614 (N.H. 1977) 19, 20, 32
Parker v. Crow, 822 Fed. Appx. 716 (10th Cir. 2020) 39
Pension Ben. Guar. Corp. v. R.A. Gray & Co., 467 U.S. 717 (1984) 38
Pilcher v. Commonwealth, 41 Va. App. 158 (2003) 30
PLIVA, Inc. v. Mensing, 564 U.S. 604 16
Prieto v. Clarke, 780 F.3d 245 (4th Cir. 2015) 41
School Bd. of City of Norfolk v. U.S. Gypsum Co., 234 Va. 32 (1987) ... 37
Shiflet v. Eller, 228 Va. 115 (1984) 37, 38
Shin v. Commonwealth, 294 Va. 517 (2017) 13
Smith v. Commonwealth, 286 Va. 52 (2013) 42
Society for the Propagation of the Gospel v. Wheeler, 22 F. Cas. 756 (C.C.D.N.H. 1814) 17
State v. North Pac. Ry. Co., 93 P. 945 (Mont. 1908) 18
Teague v. Hines, 232 F.3d 902 (10th Cir. 2000) (table) 14, 18, 31, 38
Turner v. Champion, 198 F.3d 259 (10th Cir. 1999) (table) 31, 39
Tvardek v. Powhatan Vill. Homeowners Ass'n, Inc., 291 Va. 269 (2016) 28
United States v. Anderson, No. 3:04-cr-00030 (W.D. Va. May 12, 2005) 5, 6
United States v. Brown, 155 F.3d 561 (4th Cir. 1998) 33
United States v. Frank, 8 F.4th 320 (4th Cir. 2021) 16
United States v. Griffin et al., No. 3:04-cr-00030 (W.D. Va. Nov. 8, 2004) 4
United States v. Seals, 207 Fed. Appx. 489 (5th Cir. 2006) 33

United States v. St. Louis, S.F. & T.R. Co., 270 U.S. 1 (1926) 21
Usery v. Turner Elkhorn Mining Co., 428 U.S. 1 (1976) 38
Virginia Elec. & Power Co. v. State Corp. Comm'n, 300 Va. 153 (2021) 17, 20, 21, 38
Ward v. Dixie Nat. Life Ins. Co., 595 F.3d 164 (4th Cir. 2010) 36
Washington v. Bureau of Prisons, 2019 WL 6255786 (N.D. Ohio July 3, 2019) 19
Weaver v. Graham, 450 U.S. 24 (1981) 29, 33, 34, 35
Wilkinson v. Austin, 545 U.S. 209 (2005) 41
Yelle v. Kramer, 520 P.2d 927 (Wash. 1974) (en banc) 39

STATUTES

Code § 53.1-202.2 et seq. 7
Code § 53.1-202.3 ..... 4, 7, 9, 10, 12, 13, 15, 16, 22

CONSTITUTIONAL PROVISIONS

U.S. Const. amend. XIV 37
U.S. Const. art. I § 10 29
U.S. Const. art. I § 9 29
Va. Const. art. I, § 11 37

RULES

Rule 5:1(f) 2
Rule 5A:20(e) 29

OTHER AUTHORITIES

2020 Acts ch. 50 (Spec. Sess. I) 8
2021 Acts ch. 489 (Spec. Sess. I) 24
2022 Acts ch. 2 (Spec. Sess. I) 1, 9, 15, 22
2022 Acts ch. 307 ..... 24, 25
2023 Acts ch. 741 ..... 24, 25
H.B. 30, Senate Floor Debate, Jun. 17, 2022, Va. Gen. Assem. (2022 Spec. Sess. I) 23, 26
H.B. 30, Va. Gen. Assem. (2022 Spec. Sess. I) 9

H.B. 5148 Report, H. Doc. No. 7, 2023 8
H.B. 5148, Va. Gen. Assem. (Spec. Sess. I 2020) 1, 7
J. Sutherland, Statutes and Statutory Construction (4th ed. C. Sands 1973) 19
Norman J. Singer & J.D. Shambie Singer, Sutherland Statutes and Statutory Construction, § 59:8 (8th ed. 2018) 16
Thomas M. Cooley, A Treatise on the Constitutional Limitations (Victor H. Lane ed., 7th ed. 1903) 38

INTRODUCTION

Petitioner Antoine Anderson seeks immediate release from prison on his sentences for assaulting and kidnapping correctional officers. He contends that he is entitled to the benefit of 2020 legislation, House Bill 5148, that would have allowed him to earn enhanced sentence credits. H.B. 5148, Va. Gen. Assem. (Spec. Sess. I 2020). But the version of the legislation he relies upon never went into effect because the General Assembly modified it prior to its 2022 effective date. 2022 Acts ch. 2, Item 404(R)(2) (Spec. Sess. I). It is axiomatic that legislation does not take effect before its effective date. The law that actually went into effect on July 1, 2022 does not entitle Anderson to enhanced sentence credits because one of Anderson's crimes—felony abduction—is excluded from those eligible for enhanced sentenced credits.

Anderson urges this Court to reject the plain meaning of the law by applying the presumption against retroactivity. But that presumption does not apply here. Item 404(R)(2) did not affect any pre-existing legal rights. Instead, it merely prevented the pending legal changes set forth in H.B. 5148 from ever becoming more than pending. Item 404(R)(2) therefore left Anderson subject to the very same earned sentence credit regime in place when he was convicted and sentenced. In any event, there was no need for the General Assembly to include express retroactivity language in Item 404(R)(2) because it relates back to the initial

unambiguously retroactive provision in H.B. 5148 as part of the same legislative scheme and became effective on the same date.

Anderson's constitutional arguments fail for similar reasons. When a legislature amends pending legislation before its effective date, the never-effective, pre-amendment provisions do not affect any rights or interests and cannot serve as a basis for habeas relief. And Anderson has not retroactively been subjected to harsher punishment than when he committed his crimes; to the contrary, his sentence remains exactly the same. This Court should affirm the circuit court's dismissal of Anderson's habeas petition.

STATEMENT OF THE CASE

Following Antoine[1] Anderson's attempted escape from prison, an Albemarle County jury convicted him of two counts of assaulting and battering correctional officers, in violation of Code § 18.2-57(C); abduction of a correctional officer by a prisoner, in violation of Code § 18.2-48.1; and attempted escape, in violation of Code § 18.2-478. JA13–14; see *Anderson v. Commonwealth*, Record No. 1596-05-2, 2006 WL 3589058, at *1–2 (Va. Ct. App. Dec. 12, 2006).[2] The circuit

[1] Anderson's legal first name is "Antoine," but court records in his criminal cases below refer to him by other names, including "Antinne." See JA1 n.1. This filing follows the spelling used in Anderson's brief.

[2] The unpublished dispositions relating to Anderson's charges, convictions, and direct appeals are cited "as informative," and copies of those not available in a publicly accessible electronic database are appended to this brief. Rule 5:1(f).

court sentenced him to a total of thirteen years' incarceration with the Virginia Department of Corrections (VDOC) for these felony convictions, with each sentence to run consecutively. JA14. Anderson began serving this sentence on January 18, 2013, when he was transferred to VDOC custody after completing his sentence on federal drug charges. JA4.

Following the July 1, 2022 effective date of the General Assembly's revisions to the earned sentence credit program, Anderson petitioned the Albemarle County Circuit Court for a writ of habeas corpus, arguing that he was entitled to immediate release under that revised program. JA1. The circuit court granted the Commonwealth's motion to dismiss the petition after hearing argument. JA58–73, 92, 134–38. This Court then granted Anderson's appeal. JA142.

ASSIGNMENTS OF ERROR

Anderson presents four assignments of error:

1. The circuit court erred by granting the Appellees' Motion to Dismiss and denying and dismissing Appellant's petition for writ of habeas corpus.
2. The circuit court erred in holding that Budget Item 404(R)(2) applies to the Petitioner and that therefore Petitioner is not entitled to enhanced sentence

credits under Va. Code Ann. § 53.1-202.3 for time served prior to July 1, 2022.

3. The circuit court erred in implicitly holding, or, in the alternative, failing to reach the issue, that the retroactive application of Budget Item 404(R)(2) does not violate the Ex Post Facto clause of the U.S. and Virginia Constitutions.

4. The circuit court erred in implicitly holding, or in the alternative, failing to reach the issue, that the retroactive application of Budget Item 404(R)(2) does not violate the Due Process clause of the U.S. and Virginia Constitutions.

Opening Br. 3; JA142.

STATEMENT OF FACTS

A. Anderson receives a thirteen-year sentence for abducting and assaulting correctional officers in an escape attempt

After police officers caught Anderson with large amounts of drugs for distribution in Charlottesville, Virginia, federal prosecutors charged him with, among other offenses, conspiracy to distribute 50 or more grams of cocaine base, in violation of 21 U.S.C. § 846. *United States v. Griffin et al.*, No. 3:04-cr-00030, Mem. Op. at 1–3 (W.D. Va. Nov. 8, 2004), ECF No. 108; *United States v.*

Anderson, No. 3:04-cr-00030, Plea Agreement at 1–3 (W.D. Va. May 12, 2005), ECF No. 166.

While Anderson was incarcerated in the Albemarle-Charlottesville Regional Jail pending resolution of these federal charges, JA4, he abducted and assaulted two correctional officers in an attempt to escape, *Anderson v. Commonwealth*, Record No. 1596-05-2, 2006 WL 3589058, at *1 (Va. Ct. App. Dec. 12, 2006). When 72-year-old correctional officer Harold Terry entered Anderson's cell block, "an inmate surprised him from behind and restrained him in a headlock." *Id.*; *Anderson v. Commonwealth*, Record 1596-05-2, one-judge order at 1–2 (Va. Ct. App. Mar. 21, 2006).

Several other inmates attacked the officer—including Anderson, who "began hitting [Terry] in the face," while another inmate began hitting Terry in the groin. *Anderson*, 2006 WL 3589058 at *1. Anderson and the other inmates then handcuffed the injured Terry, hogtied him, and shoved him underneath a cell bed where he lost consciousness. *Anderson*, 2006 WL 3589058 at *1; *Anderson*, Mar. 21, 2006 order at 2.

Soon another correctional officer, Joseph Woodson, entered the cellblock. *Anderson*, 2006 WL 3589058 at *1. The inmates also attacked him, holding him by the neck and bringing him to the ground. *Id.* His head hit the cell bars during the struggle, and he briefly lost consciousness. *Anderson*, Mar. 21, 2006 order at 2. As

Woodson lay face down on the floor, Anderson got on top of him, demanded that Woodson put up his hands, and then handcuffed Woodson while another inmate used a bedsheet to tie Woodson's feet together. *Anderson*, 2006 WL 3589058, at *1.

With Terry and Woodson restrained, the inmates tried unsuccessfully to escape through a cell window. *Id.* Anderson kept guard over Woodson in the cell for approximately an hour. *Anderson*, Mar. 21, 2006 order at 3. The hostage situation ended after other inmates eventually entered the cell and freed Woodson. *Anderson*, 2006 WL 3589058, at *1.

A jury convicted Anderson of state-law felony abduction, assault, and attempted-escape charges arising from these events. JA13. The circuit court sentenced him to a total of thirteen years' imprisonment with VDOC. JA14, 75.

In the meantime, Anderson pleaded guilty to federal charges of conspiracy to distribute and possession with intent to distribute 50 or more grams of cocaine base, in violation of 21 U.S.C. §§ 841 and 846. *United States v. Anderson*, No. 3:04-cr-00030, Plea Agreement at 1–3 (W.D. Va. May 12, 2005), ECF No. 166; *United States v. Anderson*, No. 3:04-cr-00030, Judgment at 1 (W.D. Va. Mar. 28, 2006), ECF No. 206. Anderson began serving his federal sentence in April 2006. JA4. When Anderson completed the federal sentence, he began serving his Virginia sentences on January 18, 2013. JA4, 75.

B. The General Assembly modifies the earned sentence credit program over several legislative sessions

Virginia has long allowed inmates serving certain sentences to earn credit for good behavior during their incarceration, thereby reducing the length of their sentences. Code § 53.1-202.2 *et seq.*; see generally JA19 (describing the various "good time" award systems VDOC administers). Different credit systems apply to different sentences, depending on the type, date, and severity of the offense. JA19. The system in place at the time Anderson was sentenced—called the earned sentence credit program—applies to inmates who committed felony offenses on or after January 1, 1995. JA19. When Anderson was sentenced, he was eligible to earn a maximum of 4.5 credit days for every 30 days served. Code § 53.1-202.3 (2021); see JA19.

In 2020, the General Assembly took up House Bill 5148, which proposed to alter the maximum rate at which inmates could earn sentence credits. JA84–86; H.B. 5148, Va. Gen. Assem. (Spec. Sess. I 2020), https://tinyurl.com/yvj7nfpj. H.B. 5148 amended Code § 53.1-202.3 to create a new subsection A. Subsection A lists certain offenses, largely more serious violent felonies, for which the maximum rate at which sentence credits could be earned would remain 4.5 days per 30-day period. *Id.* For offenses not enumerated in subsection A, the maximum sentence

credits an inmate could earn varied, and could be as high as 15 days for every 30 days served for certain eligible inmates. *Id.*

Enactment clauses in H.B. 5148 provided that the legislation would "become effective on July 1, 2022," at which time the changes would "apply retroactively to the entire sentence" of eligible inmates. JA85. In addition, recognizing that the magnitude and complexity of the changes merited study and could require further legislative adjustment, H.B. 5148 required VDOC to "convene a work group to study the impact of the sentence credit amendments set forth in this act" and "report its findings and conclusions to the Governor and General Assembly."[3] JA85 (enactment clause 2).

The General Assembly passed H.B. 5148, and the Governor signed it on November 9, 2020. See 2020 Acts ch. 50 (Spec. Sess. I). After passage, VDOC began "conducting testing and making preliminary calculations in an effort to identify inmates" whose sentences might be affected when the bill would eventually take effect nearly twenty months later. JA76. VDOC notified the inmate population that any changes in sentence calculations were prospective and potential, and that any home plans—that is, VDOC-approved plans for post-release living and work arrangements—based on revised projected release dates were

[3] VDOC submitted this report on June 1, 2023 as required. Earned Sentence Credit Legislation—House Bill 5148 Report, H. Doc. No. 7, 2023, https://tinyurl.com/3ffa798x.

necessarily "preliminary" because "audited and finalized calculations cannot occur until on and after" the legislation's July 1, 2022 effective date. JA76–77, 82. VDOC's letter to the inmate population stated: "No legal updates can be generated that reflect Enhanced Earned Sentence Credits" as modified by H.B. 5148 "prior to 7/1/2022." JA82–83.

Meanwhile, the General Assembly continued to consider changes to the program prior to its effective date. On June 17, 2022, the General Assembly passed, and on June 22, 2022, the Governor signed into law, Item 404(R)(2), which provided that certain inmates who had committed serious offenses would not be eligible for the enhanced sentence credits set forth in H.B. 5148 on any of their sentences for any offense. See H.B. 30, Va. Gen. Assem. (2022 Spec. Sess. I), https://tinyurl.com/2s4e5kpc. Item 404(R)(2) stated that, "[n]otwithstanding the provisions of § 53.1-202.3 . . . a maximum of 4.5 sentence credits may be earned for each 30 days served on a sentence that is concurrent with or consecutive to a sentence for a conviction of an offense enumerated in subsection A." 2022 Acts ch. 2, at 460–61, Item 404(R)(2) (Spec. Sess. I), https://tinyurl.com/3venuhxj; JA90.

Thus, Item 404(R)(2) provides that H.B. 5148 will not increase the maximum sentence credits available for an inmate with a mixed sentence—that is, an inmate serving a sentence for at least one offense enumerated in subsection A of Code § 53.1-202.3, along with sentences for additional offenses that are not

enumerated in subsection A. Such inmates remain eligible to earn the pre-existing maximum of 4.5 days of sentence credits for every 30 days served across all of their felony sentences covered by the earned sentence credit program. Item 404(R)(2) became effective simultaneously with H.B. 5148 on July 1, 2022.

C. The circuit court denies Anderson's habeas petition

Anderson has been earning 4.5 days of credit for every 30 days served since he became a VDOC inmate. JA75; see Code § 53.1-202.3 (2010). Applying this calculation with the assumption that Anderson would "continue to earn good time at [his] present earning level" and would not lose credit "as a result of misbehavior," VDOC in 2013 calculated Anderson's projected release date as April 9, 2024. JA36.

After H.B. 5148 and Item 404(R)(2) became effective, Anderson filed a petition for a writ of habeas corpus in Albemarle Circuit Court against Harold Clarke, VDOC's Director, and Kemsy Bowles, the Warden of Coffeewood Correctional Center where Anderson is presently incarcerated. JA1–57. Anderson asserted that, although his felony abduction conviction is enumerated in subsection A of Code § 53.1-202.3 as ineligible for the new increased maximum rate of days of credit for every 30 days served, he was eligible for that new maximum rate on his sentences for attempted escape and assault under the revised earned sentence

credit program, entitling him to release in 2022.[4] JA7–8, 37, 82. He claimed that Item 404(R)(2) did not apply to his sentence because it did not apply "retroactively" at all—that is, it did not apply to the portion of any "mixed sentence" served before July 1, 2022. JA8, 47–50. He further argued that if Item 404(R)(2) were interpreted to apply "retroactively," it would "result in Constitutional infirmities under the Ex Post Facto clause and principles of Due Process." JA10; see also JA52–54.

The circuit court granted Clarke and Bowles's motion to dismiss. JA122–27. The circuit court held that the General Assembly's changes to the earned sentence credit program "must be read in combination, including the implementation language of HB5148," so any "additional retroactive language" in Item 404(R)(2) would have been "unnecessary" and "redundant of HB5148's implementation clause." JA135; see JA124 ("[L]anguage that [Item 404(R)(2)] would be applied retroactively was not necessary and would have been duplicative."). It held that Anderson remained eligible to earn a maximum of 4.5 days of credit for every 30 days served on all of his sentences because he was convicted of an offense—

[4] Anderson argues that if Item 404(R)(2) does not apply, then he served his entire sentence by July 1, 2022. Opening Br. 11. Bowles and Clarke dispute this calculation but agree that if Item 404(R)(2) does not apply to Anderson's sentence, he is currently eligible for release. The exact date on which Anderson became eligible for release in 2022 is irrelevant to the questions presented in this appeal, and the Court should not address it.

abduction of correctional officer Joseph Woodson, in violation of Code § 18.2-48.1—enumerated in subsection A of Code § 53.1-202.3. JA13, 135–36; see JA84–86, 89–90. As a result, the circuit court concluded that the rate at which Anderson may earn sentence credits has not changed since he was initially remanded to VDOC custody. JA136.

The circuit court further held that "[n]either HB5148 nor Budget Item 404(R)(2) created a vested or substantive right before their effective date of July 1, 2022." JA135. The court explained that "[u]ntil this provision became effective, it is not something the Court determines to be a vested or substantive right, and that makes it significantly different from the other cases that were cited by Mr. Anderson as those all involved statutes [that] . . . were effective." JA123.

The circuit court further observed that H.B. 5148's provision convening a working group and requiring the submission of a report made clear that the General Assembly contemplated that the changes to the earned sentence credit program were a work in progress. Thus, nothing "guarantee[d] that even though [H.B. 5148] was to be effective on July the 1st, 2022, that, in fact, that could not have changed." JA123–24. The circuit court also noted that construing Item 404(R)(2) to apply only to "time spent 'incarcerated between July 1, 2022, and June [3]0, 2024,' as [Anderson] suggests, would be arbitrary and so capricious as to lead to an absurd result which the legislature did not intend." JA135–36 (quoting JA51).

Because Anderson's sentence and projected release date were "accurately calculated," the circuit court therefore denied and dismissed the petition. JA136. This appeal followed. JA142.

STANDARD OF REVIEW

Anderson presents issues of statutory interpretation and constitutional law, which this Court reviews de novo. *City of Charlottesville v. Regulus Books, LLC*, 301 Va. 170, 177 (2022); *Shin v. Commonwealth*, 294 Va. 517, 526 (2017).

SUMMARY OF ARGUMENT

Under the plain language of Item 404(R)(2), Anderson remains eligible for a maximum of 4.5 days of earned credit for every 30 days served because he abducted a correctional officer, an offense enumerated in subsection A of Code § 53.1-202.3. Anderson resists this plain meaning by appealing to the presumption against retroactivity. But Item 404(R)(2) does not implicate that doctrine. The presumption applies only where a law would otherwise affect "rights acquired *under existing laws*." *Landgraf v. USI Film Products*, 511 U.S. 244, 269, 277 (1994) (emphasis added). Item 404(R)(2) did not affect any rights Anderson had acquired under existing law because H.B. 5148 had not yet become effective. Rather, it preserved the status quo, preventing the pending changes anticipated in H.B. 5148 from becoming effective in the first instance as to inmates with mixed

sentences. Anderson's argument that this application of Item 404(R)(2) is "retroactive" contravenes the fundamental principle that legislation has no effect before its effective date.

Further, even if the presumption against retroactivity applied here, Item 404(R)(2) would still plainly bar enhanced sentence credits for inmates with mixed sentences. Because both H.B. 5148 and Item 404(R)(2) were enacted as part of the same legislative endeavor and became effective on the same date, they must be read together. Including additional express retroactivity language in Item 404(R)(2) would have been redundant.

Anderson's constitutional arguments fail for similar reasons. Legislation cannot affect substantive rights or interests prior to its effective date. When a legislature amends pending legislation before its effective date, the never-effective, pre-amendment provisions do not create any substantive rights or interests. When H.B. 5148 and Item 404(R)(2) became effective on July 1, 2022, nothing about Anderson's sentence changed: his eligibility for earned sentence credits remained the same on July 1 as it has been since the day he was sentenced. Because "his penalty was [not] increased from the time he committed his original unlawful acts" and indeed has not "changed at all," Item 404(R)(2) fully complies with the Ex Post Facto Clause. *Teague v. Hines*, 232 F.3d 902, at *2 (10th Cir. 2000) (table).

Similarly, Anderson's Due Process Clause claim fails because legislation that never became effective provides Anderson no substantive rights or protected liberty interests. And he identifies no legally relevant facts that any additional process he seeks could determine. This Court should affirm.

ARGUMENT

I. Item 404(R)(2) does not implicate the presumption against retroactivity, and in any event would overcome the presumption

A. The presumption against retroactivity does not apply because Item 404(R)(2) altered only H.B. 5148, which was not effective law

Under the plain language of Item 404(R)(2), Anderson is not entitled to enhanced sentence credits. Item 404(R)(2) provides that "a maximum of 4.5 sentence credits may be earned for each 30 days served on a sentence that is concurrent with or consecutive to a sentence for a conviction of an offense enumerated in subsection A." 2022 Acts ch. 2, Item 404(R)(2) (Spec. Sess. I), https://tinyurl.com/3venuhxj. Anderson's current sentences are all "consecutive to a sentence for a conviction of an offense enumerated in subsection A." *Id.* Anderson was convicted of felony abduction of a correctional officer, and subsection A enumerates "any kidnapping or abduction felony." Code § 53.1-202.3(A)(5). And Item 404(R)(2)'s non obstante clause further clarifies that the 4.5 credit maximum applies "[n]otwithstanding the provisions of

§ 53.1-202.3." Item 404(R)(2); *PLIVA, Inc. v. Mensing*, 564 U.S. 604, 621–22 (noting that "legislatures use[] *non obstante* provisions to specify the degree to which a new statute was meant to repeal older, potentially conflicting statutes in the same field" and that "[a] *non obstante* provision in [a] new statute acknowledged that the statute might contradict prior law and instructed courts not to apply the general presumption against implied repeals." (cleaned up)); *United States v. Frank*, 8 F.4th 320, 327 (4th Cir. 2021) (observing that the legislature's "use of a 'notwithstanding' clause 'clearly signals the drafter's intention that the provisions of the "notwithstanding" section override conflicting provisions of any other section.'" (quoting *Cisneros v. Alpine Ridge Grp.*, 508 U.S. 10, 18 (1993)); 3 Norman J. Singer & J.D. Shambie Singer, Sutherland Statutes and Statutory Construction, § 59:8 (8th ed. 2018) [hereinafter Sutherland] ("In general, a 'notwithstanding' clause merely excepts enumerated provisions that otherwise conflict.").

Anderson disputes none of this. Instead, he invokes the presumption against retroactivity to argue that the Court should not apply the plain meaning of Item 404(R)(2) to the portion of his sentences served prior to July 1, 2022. His invocation, however, is incorrect because Item 404(R)(2) did not change any pre-existing law; applying it to the portion of his sentence served before July 1, 2022

therefore would not constitute a retroactive application and does not implicate the presumption.

The presumption against retroactivity applies only where a statute would otherwise "have genuinely 'retroactive' effect." *Landgraf*, 511 U.S. at 277 (emphasis added) (internal quotation marks omitted) (quoting *Society for the Propagation of the Gospel v. Wheeler*, 22 F. Cas. 756, 767 (C.C.D.N.H. 1814)). A statute is genuinely retroactive if it "takes away or impairs vested rights acquired *under existing laws*, or creates a new obligation, imposes a new duty, or attaches a new disability, in respect to transactions or considerations already past." *Id.* at 269. In other words, "a retroactive application reaches back to affect rights and duties accrued prior to the legislation." *Virginia Elec. & Power Co. v. State Corp. Comm'n*, 300 Va. 153, 165 (2021).

Here, the presumption is irrelevant because Item 404(R)(2) did not alter any pre-existing law and did not affect any "rights and duties" previously acquired. Instead, Item 404(R)(2) altered only pending legislation that had not become effective. Anderson contends that Item 404(R)(2) "narrowed the eligibility criteria for the increased credits *after HB 5148 took effect*." Opening Br. 18 (emphasis added). But the General Assembly expressly set the effective date for H.B. 5148 as July 1, 2022. JA85. And the General Assembly passed Item 404(R)(2) in June 2022—*before* H.B. 5148 took effect. See p. 10, *supra*. Thus, H.B. 5148 never

became effective for inmates with mixed sentences, like Anderson. Instead, Item 404(R)(2) prevented H.B. 5148 from taking effect for such inmates in the first place. It maintained the pre-existing status quo of a 4.5-day credit maximum.

Anderson's argument that this application of Item 404(R)(2) is "retroactive" would require holding that H.B. 5148 granted him rights prior to its effective date. That argument is contrary to the basic meaning of an effective date. This Court has held that a "statute speaks as of the time when it takes effect and not of the time it was passed." *County Sch. Bd. of Fairfax Cnty. v. Town of Herndon*, 194 Va. 810, 814 (1953). "Indeed, where a statute does not become operative immediately on its enactment, but the time of its going into effect is postponed until a later date . . . it ordinarily does not have *any effect* until the stated period has expired." *Id.* (emphasis added); see also 2 Sutherland, § 33:5 ("The power to enact laws includes the power to fix a future effective date. . . . A statute with a definite future commencement day has effect only from that date, no matter when it was enacted."); *State v. North Pac. Ry. Co.*, 93 P. 945, 948 (Mont. 1908) ("Legislation is not effective for any purpose until it becomes operative.").

Thus, as the U.S. Court of Appeals for the Tenth Circuit has explained, when "a law . . . was adopted, but repealed before its effective date," it has no effect and confers no rights, because the status quo remains "until the Act became effective—which it never did[.]" *Teague*, 232 F.3d 902, at *2; see also *Nichols v. Helgemoe*,

369 A.2d 614, 618 (N.H. 1977) (when "the prior enactment was amended before its effective date," it "never conferred any benefit.") (citing, *i.a.*, 2A J. Sutherland, Statutes and Statutory Construction § 33.07 (4th ed. C. Sands 1973)). Accordingly, numerous federal courts have rejected similar inmate claims that they were entitled to the benefits of new good-time credit calculations under the recently enacted federal First Step Act prior to that law's effective date. See *Washington v. Bureau of Prisons*, 2019 WL 6255786 at *2 (N.D. Ohio July 3, 2019), report and recommendation adopted, 2019 WL 6251777 (N.D. Ohio Nov. 22, 2019) (gathering cases reaching the same conclusion).

This Court has consistently applied this fundamental principle of legislative interpretation. *J.W. Woolard Mech. & Plumbing, Inc. v. Jones Dev. Corp.*, 235 Va. 333, 336 n.* (1988) ("The amendment has no effect on the present case, which turns on facts which occurred before its effective date. If it were applicable, its language would have resolved the question before us."); *Friedman v. Peoples Serv. Drug Stores, Inc.*, 208 Va. 700, 702 (1968) ("The provisions of the Uniform Commercial Code, if applicable, have no effect on the case at bar since the cause of action accrued prior to January 1, 1966, the effective date of the Act."); *Bull v. Read*, 54 Va. (13 Gratt.) 78, 89 (1855) ("[T]he legislature may provide that an act shall not take effect until some future day named or until the happening of some particular event or in some contingency thereafter to arise or upon the performance

of some specified condition. The exigencies of the government may frequently require laws of this character and to deny to the legislature the right so to frame them would be unduly to qualify and impair the powers plainly and necessarily conferred.").

Here, Item 404(R)(2) did not amend existing law; it merely modified H.B. 5148, which had not come into effect. Such a modification is no more a "retroactive" law than a legislative amendment to a pending bill. Anderson cites no case holding that the presumption against retroactivity applies in such circumstances. It does not. The application of Item 404(R)(2) to Anderson affects no "rights acquired under the former law." *Ferguson v. Ferguson*, 169 Va. 77, 85 (1937) (citation omitted). Indeed, it does not "affect[] past transactions" at all, *Gloucester Realty Corp. v. Guthrie*, 182 Va. 869, 873 (1944), because the only changes Item 404(R)(2) made were to legislation that had not yet become "existing law[]," *Landgraf*, 511 U.S. at 277; *Nichols*, 369 A.2d at 618; see *Virginia Elec. & Power Co.*, 300 Va. at 165 (2021).

Accordingly, Item 404(R)(2) should be interpreted according to its plain meaning. The circuit court correctly held that Anderson is not entitled to enhanced sentence credits.

B. Even if the presumption against retroactivity applied, Item 404(R)(2) plainly bars mixed sentences from eligibility for enhanced sentence credits

Even if the presumption against retroactivity somehow applied here, Anderson would still be ineligible for enhanced sentence credits. Generally, "statutes will not be applied retroactively absent a manifest intent to the contrary." *Virginia Elec. & Power Co.*, 300 Va. at 165. But this Court "has never required that the General Assembly use any specific form of words to indicate that a new statute or amendment to an existing statute is intended to be applied retroactively." *Board of Sup'rs of James City Cnty. v. Windmill Meadows, LLC*, 287 Va. 170, 180 (2014). Instead, the Court looks "to the *context* of the language used by the legislature to determine if it 'shows it was intended to apply retroactively and prospectively.'" *Id.* (emphasis added) (quoting *Buenson Div., Aeronca, Inc. v. McCauley*, 221 Va. 430, 433 (1980)).

Thus, the presumption against retroactivity can be overcome not only by "explicit language," but also by implication from the nature of the legislative enactment. *Fernandez-Vargas v. Gonzalez*, 548 U.S. 30, 37 (2006) ("[I]t has become 'a rule of general application' that 'a statute shall not be given retroactive effect unless such construction is required by explicit language or by necessary implication.'" (quoting *United States v. St. Louis, S.F. & T.R. Co.*, 270 U.S. 1, 3 (1926)); see also *In re Pillow*, 8 B.R. 404, 407 (Bankr. D. Utah 1981) ("Congress

must have intended Section 522(f) to reach pre-enactment security interests, because otherwise there would be a hiatus in the coverage of the bankruptcy laws.").

The presumption also does not change the cardinal rule that "statutes are not to be considered as isolated fragments of law, but as a whole, or as parts of a great connected, homogenous system, or a single and complete statutory arrangement." *Blake v. Commonwealth*, 288 Va. 375, 383 (2014) (citation omitted). "[E]very part of a statute is presumed to have some effect and no part will be considered meaningless unless absolutely necessary." *Id.* (citation omitted).

Here, the General Assembly's intent for Item 404(R)(2) to apply to the entirety of mixed sentences is clear from the context of the legislature's amendments to the statutory scheme. The General Assembly enacted both H.B. 5148 and Item 404(R)(2) as part of a comprehensive legislative process to alter the earned sentence credit program in Code § 53.1-202.3 that would "apply retroactively to the entire sentence" of an eligible Virginia inmate. JA85. And the General Assembly provided that both H.B. 5148 and Item 404(R)(2) would become effective simultaneously "on July 1, 2022." JA85; see 2022 Acts ch. 2, at 659–60, (Spec. Sess. I), https://tinyurl.com/3venuhxj (providing that the provisions of the first enactment clause, including Item 404(R)(2), become "effective on July 1, 2022.").

Although the General Assembly passed H.B. 5148 more than a year earlier than Item 404(R)(2), it provided for an unusually long period before H.B. 5148 would become effective in order to examine further the earned sentence credit program, which included convention of a working group to study the legislation's potential effects. JA85. As a result of its further consideration during the period it provided for exactly that purpose, the General Assembly altered H.B. 5148 prior to its effective date to provide that it would not increase the sentence credits available to inmates with mixed sentences. See pp. 10–11, *supra*. Therefore, the circuit court correctly held that H.B. 5148 and Item 404(R)(2) "must be read in combination, including the implementation language of HB5148." JA135.

Anderson argues that he is entitled to enhanced sentence credits under H.B. 5148 for every 30 days he served prior to July 1, 2022, because Item 404(R)(2) did not repeat H.B. 5148's enactment clause stating that its terms would apply "retroactively to the entire sentence" of any eligible inmate. Opening Br. 19; JA85. This argument fails. Repetition of the enactment clause was unnecessary because Item 404(R)(2)'s sole purpose was to modify the otherwise explicitly retroactive terms of H.B. 5148. Indeed, the legislative debates on Item 404(R)(2) make clear that the public understood it to be a modification of H.B. 5148 before H.B. 5148 ever took effect. See, *e.g.*, H.B. 30, Senate Floor Debate at 5:37:49 to 5:43:43, Jun. 17, 2022, Va. Gen. Assem. (2022 Spec. Sess. I), https://tinyurl.com/4krmkew2

(statement of Sen. Mark Obenshain) ("I remember while we were debating [H.B. 5148 in 2020] that there was a great deal of discussion over who would and would not be eligible for those credits. We spent a lot of time talking about whether violent offenders—the worst of the worst—would be eligible for these earned sentence credits, and it was the consensus of this body that they should not be. . . . We spent a great deal of effort making sure that people who were convicted of those offenses were not eligible, but because of the way that this was drafted, this is a loophole that we should close. We have an obligation to do what we set out to do during that 2020 session and limit this and carefully cabin [earned sentence credit eligibility] to those who we agreed and linked arms and said should be eligible for these credits. . . . [T]his [amendment] corrects that."). The legislative context makes clear that Item 404(R)(2) was part of the same ongoing effort to revise the earned sentence credit regime that gave rise to H.B. 5148. Thus, as the circuit court correctly held, additional enactment language would have been "redundant." JA135.

This Court recently applied this reasoning to a similar ongoing legislative undertaking. In a series of amendments, the General Assembly altered the jurisdiction of the Court of Appeals of Virginia, including as to petitions for review of immunity rulings. See, *e.g.*, 2021 Acts ch. 489 (Spec. Sess. I); 2022 Acts ch. 307; 2023 Acts ch. 741. One such amendment affecting jurisdiction over these

petitions included an enactment clause addressing its application to pending cases. 2022 Acts ch. 307 (enactment clause 2). A year later, the General Assembly recodified the jurisdictional provisions governing these petitions in a new Code section—but did not include another enactment clause providing that the recodified provisions applied to pending cases. 2023 Acts ch. 741. The Court of Appeals held that "without a savings clause" like the 2022 legislation had, the recodified provisions were inapplicable to pending cases. *Commonwealth v. Muwahhid*, __ Va. App. __, 2023 WL 3956774, at *1, n.1 (June 13, 2023). It therefore "believed it no longer had jurisdiction over [a pending] case and transferred it" to this Court. *Id.* But this Court disagreed, "finding that the Court of Appeals retains jurisdiction over the petition for review," and remanded the case back to the Court of Appeals. *Commonwealth v. Muwahhid*, Record No. 230278, Order of May 30, 2023.

The same rationale should apply here. The General Assembly's alteration of the earned sentence credit program, just like its expansion of the Court of Appeals's jurisdiction, was a complex and ongoing legislative project that was not completed in a single iteration. And just as the General Assembly did not need to repeat the enactment clause in its 2023 legislation recodifying the jurisdictional provision, it likewise did not need to repeat the enactment language in Item 404(R)(2) to apply the Item's adjustment to the same sentences potentially covered by H.B. 5148's retroactivity clause.

In short, the General Assembly need not repeat itself when the legislative context plainly demonstrates that it is continuing to adjust a legislative regime on which it has already expressed its intent regarding retroactivity. This Court should affirm the circuit court's correct holding that H.B. 5148 and Item 404(R)(2) "must be read in combination," such that additional enactment language in Item 404(R)(2) would be "unnecessary" and "redundant of HB5148's implementation clause." JA135.

Moreover, Anderson's interpretation of Item 404(R)(2) makes a hash of the General Assembly's intent. Anderson argues that the General Assembly intended for inmates with mixed sentences to obtain enhanced credits retroactively for the entirety of their sentences prior to July 1, 2022, then to be ineligible for enhanced credits solely between July 1, 2022 and June 30, 2024. Opening Br. 30. Anderson provides no reason why the General Assembly would have intended this incoherent scheme. Indeed, legislators who passed Item 404(R)(2) did so with the understanding that they were correcting an "inadvertent[]" effect of H.B. 5148. See H.B. 30, Senate Floor Debate at 5:39:11 to 5:43:43, Jun. 17, 2022, Va. Gen. Assem. (2022 Spec. Sess. I), https://tinyurl.com/4krmkew2 (statement of Sen. Mark Obenshain) ("That bill when it was adopted I believe inadvertently provided eligibility to people who were convicted concurrently of offenses that were covered and offenses that were not covered [under subsection A]. . . . Because of

the legislation that we passed and without this amendment, we are going to be releasing 43 murderers and 41 rapists who would not be eligible to be released at the beginning of next month without that legislation, and this [amendment] corrects that."). Instead, Anderson argues that the incoherence of his interpretation is solely a "policy" issue, which this Court cannot consider. Opening Br. 27–28. But Anderson's argument that the presumption against retroactivity compels this bizarre result fails, see Part I.A, *supra*, and the implausibility of his interpretation further demonstrates that it is not what the General Assembly intended, see *Boynton v. Kilgore*, 271 Va. 220, 227 (2006) ("When interpreting statutes, courts ascertain and give effect to the intention of the legislature." (quotation marks and citations omitted)).

Anderson also argues that the adoption of Item 404(R)(2) in a budget bill indicates that it was not intended to alter the effect of H.B. 5148 on the portion of mixed sentences served prior to July 1, 2022. Opening Br. 25–26. But given the budget bill's timing, shortly before H.B. 5148 would have gone into effect, this fact only underscores that the General Assembly intended Item 404(R)(2) to adjust the impending revisions to the earned sentence credit program.[5] The General

[5] The General Assembly may, of course, choose to extend the effect of Item 404(R)(2) for a further period of years, or permanently, before its expiration date in 2024. Thus, construing Item 404(R)(2) according to its plain terms would not necessarily result in any need for VDOC to "recalculate hundreds or thousands of sentences in accordance with HB 5148," as Anderson contends. Opening Br. 30. In

Assembly was not required to repeat the enactment clause from the legislation that Item 404(R)(2) plainly modified to give Item 404(R)(2) its intended effect. JA135; see *Muwahhid*, 2023 WL 3956774, at *1 n.1.

Thus, even if Item 404(R)(2) had affected existing law and required a retroactivity analysis, but see Part I.A, *supra*, it would apply retroactively by implication. See generally *Gonzalez*, 548 U.S. at 37.

II. Anderson's constitutional claims fail

Anderson's Ex Post Facto Clause and Due Process Clause claims fail for similar reasons. Item 404(R)(2) does not retroactively increase Anderson's punishment compared to when he was sentenced. And Item 404(R)(2) does not retroactively strip Anderson of any substantive or vested right, or any protected liberty interest, and therefore complies with the Due Process Clause.

---

any event, such a result would not be "absurd," for the reasons Anderson explains at length: it would not render the law internally inconsistent, impossible to implement, or a nullity. Opening Br. 27–31; *Tvardek v. Powhatan Vill. Homeowners Ass'n, Inc.*, 291 Va. 269, 280 (2016). Rather, interpreting Item 404(R)(2) according to its plain meaning would delay the application of retroactive enhanced sentence credits to those with mixed sentences, at least until 2024 as the General Assembly continues to consider how best to apply the earned sentence credit system. Thus, precisely as Anderson complains, Item 404(R)(2) prevents these violent felons from being immediately released from prison.

A. Anderson's Ex Post Facto Clause claim fails because his earned sentence credits were never revoked, and Item 404(R)(2) does not increase his punishment

The application of Item 404(R)(2) to Anderson complies with the Ex Post Facto Clause. The U.S. Constitution provides that no "ex post facto law shall be passed," and that "[n]o State shall . . . pass any . . . ex post facto law." U.S. Const. art. I §§ 9, 10. This clause "forbids the imposition of punishment more severe than the punishment assigned by law when the act to be punished occurred." *Weaver v. Graham*, 450 U.S. 24, 30 (1981). Thus, the legislature violates the Ex Post Facto Clause only if it passes laws that "retroactively alter the definition of crimes or increase the punishment for criminal acts" after the crime occurred. *Collins v. Youngblood*, 497 U.S. 37, 43 (1990).[6]

---

[6] Anderson states that he brings claims under the Ex Post Facto Clauses of both the U.S. and the Virginia Constitutions. Opening Br. 31. But his petition does not refer to the Virginia Constitution's Ex Post Facto Clause. See JA10; see also JA52–53 (no reference to the Virginia Constitution.) And although his opening brief mentions the provision, he fails to make any specific argument about it. See Opening Br. 32–34. Accordingly, Anderson has waived any argument under the Virginia Constitution's Ex Post Facto Clause. See *Baugh v. Commonwealth*, 68 Va. App. 437, 442 n.3 (2018) (holding the same argument waived when the appellant alleged a violation of both Ex Post Facto Clauses but included "no discussion on how this state constitutional provision was violated") (citing Rule 5A:20(e)); *Martin v. Commonwealth*, 64 Va. App. 666, 674–75 (2015) (same). In any event, any argument under the Virginia Ex Post Facto Clause would fail for the same reasons as Anderson's argument under the federal clause. See *McClain v. Commonwealth*, 189 Va. 847, 858 (1949) (interpreting Virginia Constitution's Ex Post Facto Clause consistently with federal constitutional authorities); see also, *e.g.*, *Evans v. Commonwealth*, 228 Va. 468, 476–77 (1984) (analyzing Virginia and federal constitutional ex post facto claims in a single analysis using Virginia

Here, Item 404(R)(2) complies with the Ex Post Facto Clause for two reasons. First, Item 404(R)(2) did not change Anderson's sentence at all. Rather, it maintained the same earned sentence credit system in place when Anderson committed his crimes and was sentenced for them by preventing H.B. 5148 from going into effect for inmates, like Anderson, with mixed sentences. Second, even if the change to H.B. 5148 prior to its effective date could be considered "retroactive," it complies with the Ex Post Facto Clause because it did not increase Anderson's punishment compared to when his crimes occurred.

1. Anderson cannot base an Ex Post Facto Clause claim on provisions that never became effective

First, Anderson's ex post facto argument fails because Item 404(R)(2) does not alter his sentence at all. Rather, it merely prevented the changes set forth in H.B. 5148 from taking effect. Again, a change to a pending provision prior to its effective date is not a change to existing law. See pp. 19–24, *supra*.

Anderson contends that application of Item 404(R)(2) to his sentence violates the Ex Post Facto Clause by revoking enhanced sentence credits he had "already earned." Opening Br. 33. But Anderson had *not* "already earned" any sentence credits under H.B. 5148, because that provision was not in effect before

---

and federal law interchangeably); *Pilcher v. Commonwealth*, 41 Va. App. 158, 167–68 (2003) (same).

June 2022, when it was amended by Item 404(R)(2). See JA84–91. It is a fundamental principle of legislation that a law has no effect before its effective date. A law does not confer any substantive rights or interests before its effective date. See pp. 21–23, *supra*. Anderson never earned, and was never eligible for, earned sentence credits at a rate higher than the existing 4.5 days for every 30 days served—the same rate in place when he committed his crimes. Instead, Anderson merely had a hope or "expectation" that he would be awarded enhanced credits in the future under H.B. 5148. Opening Br. 33.

A law that never became effective cannot provide the basis of an Ex Post Facto claim. For instance, after the Oklahoma legislature repealed a sentencing law prior to its effective date, the U.S. Court of Appeals for the Tenth Circuit repeatedly held that that the repeal did not violate the Ex Post Facto Clause as to prisoners who would otherwise have been entitled to a sentence reduction. The Tenth Circuit explained that it could "find no support for the asserted right to have a law that was adopted, but repealed before its effective date, applied retroactively on collateral review. Nor can we find any support for petitioner's claim that the Oklahoma laws which postponed and repealed the Act violated his rights under the Ex Post Facto Clause." *Teague*, 232 F.3d 902, at *2. To the contrary, the court held that "[t]he Ex Post Facto Clause does not work in this manner." *Id.*; see also *Turner v. Champion*, 198 F.3d 259, at *1 (10th Cir. 1999) (table) ("In a multitude

of unpublished cases, we have found that the Act does not create any federal constitutional claim—whether ex post facto, due process, or equal protection—for those prisoners seeking resentencing under it and thus have denied habeas relief."). Similarly, the New Hampshire Supreme Court rejected an "ex post facto" claim regarding parole eligibility, where "the prior enactment was amended before its effective date, and thus never conferred any benefit." *Nichols*, 369 A.2d at 618; see also *Castillo v. State*, 954 P.2d 145, 146–47 (Okla. Crim. App. 1998) (rejecting ex post facto claim based on an "intervening change in the law" when the law upon which the petitioner relied had not become effective).

Anderson cites no case holding that the Ex Post Facto Clause gives him a right to the benefit of a provision that never went into effect. This Court should affirm.

2. Anderson's Ex Post Facto Clause claim also fails because Item 404(R)(2) does not increase his punishment beyond that at sentencing

Second, even if Item 404(R)(2) could somehow be considered "retroactive," Anderson's ex post facto claim would still fail because Item 404(R)(2) did not increase his punishment beyond that allowed at the time of his crime. Indeed, it did not alter his sentence at all.

The Ex Post Facto Clause "forbids the imposition of punishment more severe than the punishment assigned by law when the act to be punished occurred."

Weaver, 450 U.S. at 30. That prohibition is based on "the central concerns of the *Ex Post Facto* Clause: 'the lack of fair notice and governmental restraint when the legislature increases punishment beyond what was prescribed when the crime was consummated.'" *Lynce v. Mathis*, 519 U.S. 433, 441 (1997) (quoting *Weaver*, 450 U.S. at 30); see *Johnson v. United States*, 529 U.S. 694, 699 (2000) (the "heart of the *Ex Post Facto* Clause . . . bars application of a law 'that changes the punishment, and inflicts a greater punishment, than the law annexed to the crime, when committed'" (quoting *Calder v. Bull*, 3 U.S. 386, 390 (1798) (opinion of Chase, J.))); see also *Evans*, 228 Va. at 476 (holding that legislative change affecting penal provisions did not violate Ex Post Facto Clause in part because "the statutory amendment was not 'more onerous' than the prior law" (quoting *Weaver*, 450 U.S. at 30)).

Thus, the clause is not implicated when a court seeks to "reimpose" the "original term" of a prisoner's sentence, because the "sentence can only violate the Ex Post Facto Clause if it increases the penalty he could have received for his crimes." *United States v. Brown*, 155 F.3d 561, at *1 (4th Cir. 1998) (table); see also *United States v. Seals*, 207 Fed. Appx. 489, 491 (5th Cir. 2006) (holding that a new sentence did not violate the clause because it "is not above and beyond the maximum penalty of his original conviction."); *Froman v. Peterson*, 74 Fed. Appx. 484, 486 (6th Cir. 2003) (holding that a requirement to participate in a Sex

Offender Treatment Program to receive good time credits did not violate the clause because the requirement "would not increase [the petitioner's] punishment beyond his original sentence").

Here, even under Anderson's erroneous view that H.B. 5148 granted him rights prior to its effective date, the Ex Post Facto Clause is not implicated because Item 404(R)(2) did not increase Anderson's punishment beyond his original lawful sentence. Instead, Item 404(R)(2) made Anderson ineligible for a potential sentence *reduction* that he could otherwise have earned under H.B. 5148. The combined effect of H.B. 5148 and Item 404(R)(2) was to leave Anderson where he started: eligible to earn a maximum of 4.5 days of sentence credit for every 30 days served. See pp. 11, 13, 20, 36–37, *supra*. He has the same projected release date as when VDOC first incarcerated him: April 9, 2024. JA36. His sentence thus never became "more severe than the punishment assigned by law when the act to be punished occurred." *Weaver*, 450 U.S. at 30. The "central concerns" of "lack of fair notice and governmental restraint" are not implicated when, as here, the legislature did not increase Anderson's punishment "beyond what was prescribed when the crime was consummated.'" *Lynce*, 519 U.S. at 441.

The cases Anderson cites do not support his ex post facto claim. In those cases, unlike here, the legislature retroactively changed the conditions that applied to the prisoners' *original* sentences, and thus worsened the original sentence after

the fact. In *Weaver*, the applicable state law included a good-time credit system at the time of prisoner's sentencing. 450 U.S. at 26. A few years later, the legislature repealed this system, enacted a new and more stringent formula, applied the new formula to the prisoner, and extended his sentence. *Id.* at 26–27. The legislature thus gave him a sentence "more severe than the punishment assigned by law when the act to be punished occurred." *Id.* at 30. Anderson, by contrast, remains subject to the same sentence conditions—including the maximum rate at which he is eligible to earn sentence credits—as when he committed his crimes.

Similarly, *Lynce* involved legislative action that resulted in a prisoner having a more severe penalty than when he was originally sentenced. In that case, before the prisoner committed his crime, the state legislature implemented a system of early-release credits to prisoners under certain conditions. *Lynce*, 519 U.S. at 435. After the prisoner completed his sentence and was released from prison pursuant to that system, however, the legislature rescinded the credits policy. *Id.* at 438–39. The state then revoked the prisoner's early release under the now-repealed early-release system and returned him to prison. *Id.* at 435, 439. Just as in *Weaver*, this law violated the Ex Post Facto Clause because the prisoner was punished "beyond what was prescribed when the crime was consummated." *Id.* at 441. Anderson's sentence, however, has not changed since the time his crime was consummated.

None of the cases Anderson cites support his argument that changing a sentencing regime enacted *after* a prisoner was sentenced violates the Ex Post Facto Clause when the original sentence is unchanged. The Ex Post Facto Clause forbids only the increase of a punishment after the commission of a crime. Because Item 404(R)(2) leaves Anderson's sentence unchanged, this Court should affirm the judgment of the circuit court.

B. Anderson's due process claim fails because he has no substantive right or protected liberty interest in a provision that never became effective

Finally, Anderson's due process claims also fail. The substantive due process doctrines he relies upon do not apply in the criminal context, which is governed by the Ex Post Facto Clause. And he has no substantive due process right to the application of a law that never became effective. Anderson has no procedural due process rights either because H.B. 5148 gave him no protected liberty interest.

1. Anderson's substantive due process claim fails

First, any substantive due process right against the retroactive application of law does not apply here. "[T]he Ex Post Facto Clause, not the Due Process Clause, establishes the relevant framework for resolving challenges to the retroactive application of new criminal rules." *Holmes v. Christie*, 14 F.4th 250, 267 (3d Cir. 2021); see *Ward v. Dixie Nat. Life Ins. Co.*, 595 F.3d 164, 176 (4th Cir. 2010)

("[T]he Ex Post Facto Clause" controls "retroactive application of penal statutes" in "the criminal context," while "in the civil context, retroactive application of statutes potentially implicates . . . the Due Process Clause."). Thus, "whatever protection against retroactive legislative acts the Due Process Clause provides, . . . this protection is no greater than the protection provided by the Ex Post Facto Clause." *Carpenter v. Commonwealth*, 51 Va. App. 84, 95 (2007). Because there is no ex post facto violation here, "these statutes' retroactive application did not violate the Due Process Clause either." *Id.*

Second, Anderson's substantive due process claim also fails because H.B. 5148 never went into effect for inmates with mixed sentences, and it therefore never created any substantive rights or interests. The Due Process Clauses of the U.S. and Virginia Constitutions provide that the government cannot deprive a person of "life, liberty, or property, without due process of law." U.S. Const. amend. XIV; Va. Const. art. I, § 11, cl. 1. Under Virginia's Due Process Clauses, the Commonwealth cannot through retroactive civil legislation retroactively divest "vested rights" or "substantive rights." *Shiflet v. Eller*, 228 Va. 115, 120 (1984); see *School Bd. of City of Norfolk v. U.S. Gypsum Co.*, 234 Va. 32, 38 (1987). Substantive rights concern the "creation of duties, rights, and obligations, as

opposed to procedural or remedial law." *Shiflet*, 228 Va. at 120.[7]

Here, Anderson has no vested or substantive rights in provisions of a law that never came into effect. Again, legislation has no effect before its effective date. See pp. 21–24, *supra*. Thus, provisions of laws which are repealed before their effective date do not implicate any vested or substantive rights. See Thomas M. Cooley, A Treatise on the Constitutional Limitations 511 (Victor H. Lane ed., 7th ed. 1903) (quoted in *Virginia Elec. & Power Co.*, 300 Va. at 172 (Kelsey, J., concurring)) ("[A] right cannot be considered a vested right, unless it is something more than such a mere expectation as may be based upon an anticipated continuance of the present general laws.").

Rejecting a highly similar argument, the Tenth Circuit explained that "[w]e can find no support for the asserted right to have a law that was adopted, but repealed before its effective date, applied retroactively on collateral review." *Teague*, 232 F.3d 902, at *2. The court went on to note that "until the Act became effective—which it never did—petitioner was convicted under, and his sentence was governed by" the law in effect at the time of his sentence. *Id.* As such, the

[7] There is no federal due process equivalent to this Virginia retroactivity doctrine. Under federal law, retroactive civil legislation violates the Due Process Clause only if it is "arbitrary and irrational," *Usery v. Turner Elkhorn Mining Co.*, 428 U.S. 1, 15 (1976), or "particularly harsh and oppressive," *Pension Ben. Guar. Corp. v. R.A. Gray & Co.*, 467 U.S. 717, 733 (1984) (cleaned up). Anderson does not even identify this more stringent test, much less argue that he can satisfy it.

court concluded, "we can not see how his penalty was increased from the time he committed his original unlawful acts. In fact, we can not see how it was changed at all." *Id.* (rejecting a due process claim); see also, *e.g.*, *Parker v. Crow*, 822 Fed. Appx. 716, 717, 719 (10th Cir. 2020) ("Parker argued the Act created a vested right that . . . could not be repealed—though the legislature repealed the Act before it took effect. . . . [B]ecause the Oklahoma legislature repealed the Act before its effective date . . . we have held that the Act did not create any federal constitutional claims for those seeking habeas relief.") (internal quotation marks omitted); *Turner*, 198 F.3d 259, at *1 (rejecting due process claim and collecting cases).

The Washington Supreme Court similarly rejected a due process claim concerning a Washington law that would have increased the salaries of certain state officials but was repealed by initiative prior to its effective date. *Yelle v. Kramer*, 520 P.2d 927, 928–29 (Wash. 1974) (en banc). Because the legislative salary increase had not yet become effective when it was revoked by the initiative, the court reasoned that "there was no reduction of salary of any state official or judge," notwithstanding that the officials received "substantially less than the increased compensation" than they had hoped for under the never effective legislation. *Id.* at 929, 935.

Anderson appears to concede that H.B. 5148 could not create any "vested" rights prior to its effective date. Opening Br 17. He argues, however, that the circuit court erred in failing separately to analyze whether H.B. 5148 provided him a "substantive" right to enhanced sentence credits. *Id.* at 17–18. But a law does not create any rights, substantive or otherwise, prior to its effective date. Item 404(R)(2) therefore cannot deprive Anderson of any rights conferred by H.B. 5148 because it conferred no rights. See *Hawkins v. Freeman*, 195 F.3d 732, 749 (4th Cir. 1999). Anderson cites no authority for the proposition that H.B. 5148 could have conferred on him any substantive rights or interests prior to its effective date, much less that it actually "took effect" before then. Opening Br. 17–18. He therefore cannot demonstrate a due process violation. *Hawkins*, 195 F.3d at 749.

2. Anderson's procedural due process claim fails because he has no protected liberty interest, and his proposed process would only go towards proving facts that are conceded or irrelevant

Anderson's argument that a retroactive application of Item 404(R)(2) would violate the procedural due process protections under the U.S. and Virginia Constitutions likewise fails. Opening Br. 34–36.

Courts apply a substantially similar two-step test under both the Virginia and U.S. Constitutions based on the "almost exact similarity in language" between the two provisions. *Carter v. Gordon*, 28 Va. App. 133, 145 (1998). "To state a

procedural due process violation, a plaintiff must (1) identify a protected liberty or property interest and (2) demonstrate deprivation of that interest without due process of law." *Prieto v. Clarke*, 780 F.3d 245, 248 (4th Cir. 2015); see also *Wilkinson v. Austin*, 545 U.S. 209, 221, 224 (2005) (applying these two steps); *Klimko v. Virginia Emp. Comm'n*, 216 Va. 750, 754 (1976) ("The first inquiry [in a procedural due process challenge] is whether the interest is . . . protected by procedural due process guarantees; if so, the second is whether the procedures prescribed or applied are sufficient to satisfy the due process "fairness" standard.").

Anderson's claim fails at the outset because, for all the reasons explained above, he has no protected liberty interest in the application of H.B. 5148. See Part II.B.1, *supra*. Anderson relies heavily upon *Ewell v. Murray*, which assumed, without deciding, that Virginia's earned sentence credit program creates a liberty interest in *accrued* credits under the Fourteenth Amendment. 11 F.3d 482, 488 (4th Cir. 1993). But there is no protected liberty interest in credits that are merely "expect[ed]" rather than actually accrued, Opening Br. 33, and therefore "there can be no due process violation," *Hawkins*, 195 F.3d at 750. H.B. 5148 created no protected interests for inmates with mixed sentences because the General Assembly altered it prior to its effective date, and it therefore never took effect. See pp. 9–11, 23–24, *supra*. Anderson has failed to demonstrate any infringement of a protected liberty interest that could give rise to a procedural due process claim.

Moreover, Anderson does not explain to what end any further process would be aimed. He appears to contend that he should have been given "written notice of the charges against [him]," the ability "to call witnesses," and "factfinders" issuing a "written statement as to the evidence relied upon and the reasons for the disciplinary action." Opening Br. 35 (quoting *Ewell*, 11 F.3d at 487–88). But Anderson was not "charged" with anything apart from his original criminal indictments, where he received all the robust process of a jury trial. There is no dispute about the offenses for which Anderson was convicted; Anderson agrees that "[t]here are no material facts in dispute." Opening Br. 8, 11. Nor was he subject to any disciplinary action, nor did he lose any credits that had ever been conferred. Instead, he argues that he was entitled to enhanced credits based on legislative language concerning eligibility for inmates with certain convictions. No additional process would shed any light at all on his eligibility for sentence credits.

Anderson thus fails to explain what the process he claims he is due would be used to show. "[D]ue process does not require the opportunity to prove a fact that is not material to the State's statutory scheme." *Connecticut Dep't of Pub. Safety v. Doe*, 538 U.S. 1, 4, 7–9 (2003); see also *Smith v. Commonwealth*, 286 Va. 52, 60 n.6 (2013) (holding that regardless of whether the plaintiff had protected rights, "no additional process was necessary. Classification of a crime as a 'sexually violent offense' under Code § 9.1-902 is based solely on the nature of the crime.

Thus, conviction" of the offense "is the only fact relevant to the classification determination, and nothing Smith could have presented at a hearing would have changed that fact."). Anderson's procedural due process claim therefore fails.

CONCLUSION

For the foregoing reasons, this Court should affirm.

Respectfully submitted,

HAROLD CLARKE, et al.

By Counsel

this 5th day of July, 2023.

/s/ Andrew N. Ferguson
ANDREW N. FERGUSON (#86583)
Solicitor General
Office of the Attorney General
202 North Ninth Street
Richmond, Virginia 23219
(804) 786-7704 – Telephone
(804) 371-0200 – Facsimile
SolicitorGeneral@oag.state.va.us
Counsel for Appellees

CERTIFICATE OF COMPLIANCE

I hereby certify that this brief complies with Rules 5:6 and 5:26(b) of the Rules of the Supreme Court of Virginia.

It contains 10049 words, excluding the cover page, table of contents, table of authorities, signature blocks, and this certificate (Rule 5:26(g)).

CERTIFICATE OF FILING AND SERVICE

I hereby certify that on the 5th day of July, 2023 I electronically filed the foregoing with the Clerk of the Supreme Court of Virginia through the Virginia Appellate Courts Electronic System, and that on the 5th day of July, 2023 I served true and correct copies of it by e-mail on the following counsel of record:

Geri Greenspan, Esq.
Vishal Agraharkar, Esq.
American Civil Liberties Union Foundation of Virginia
Richmond, VA 23219
(804) 491-8584 – Telephone
ggreenspan@acluva.org
vagraharkar@acluva.org

James J. O'Keeffe, Esq.
MichieHamlett, Attorneys at Law
109 Norfolk Avenue, S.W., 2nd Floor
Roanoke, VA 24011
(540) 491-0634 – Telephone
(434) 951-7271 – Fax
jokeeffe@michiehamlett.com
Counsel for Appellant